

26CHCV01621 26CHCV01621

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 26CHCV01621 Hearing Date: June 26, 2026 Dept: F47

Dept. F47

Date: 6/26/26

Case #26CHCV01621

MOTION TO QUASH

SERVICE OF SUMMONS

Motion filed on 4/27/26.

MOVING PARTY: Defendant Michael Collins (special appearance)

RESPONDING PARTY: Plaintiff MU Holding Enterprises, Inc.

NOTICE: ok

RELIEF REQUESTED: An order quashing the purported service of summons and complaint on Defendant Michael Collins.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 4/22/26, Plaintiff MU Holding Enterprises, Inc.

(Plaintiff) filed this unlawful detainer action against Defendants Michael Collins (Collins); Claudia Marie (Marie); Brett Mosloy (Mosloy); Gordon

Leverett (Leverett); J. Erin (Erin); John Doe (John); Kim Doe (Kim); Brett Doe (Brett); and Jamie Doe (Jamie) regarding residential property located at 15023 Devonshire Street, Mission Hills, CA 91345.

On 4/27/26, Collins, representing himself, filed and served the instant motion seeking an order quashing the purported service of summons and complaint on Collins. The motion was originally scheduled for hearing on 9/4/26. On 6/12/26, the Court advanced the hearing to 6/26/26. (See 6/12/26 Minute Order). Additionally, the Court ordered Plaintiff to serve notice of the ruling via personal service or overnight delivery on each of the moving defendants and file such proof of service at least 5 court days before the 6/26/26 hearing date. Id. On 6/23/26, 3 court days before the 6/26/26 hearing date, Plaintiff filed a Notice of Advancement of Hearings on Motions to Quash and Demurrers with a proof of service indicating that such notice was served by overnight delivery and electronic service on 6/23/26. On 6/21/26, Plaintiff served an opposition to the motion (filed on 6/22/26 at 12:00 a.m.). On 6/22/26, at 1:09 p.m., Collins filed a reply to the opposition.

On 6/23/26, Collins filed (no proof of service) an "Objection to Plaintiff's Request for Judicial Notice, Late-Filed Opposition Papers, and Noncompliance With June 12, 2026 Minute Order."

ANALYSIS

Plaintiff's Request for Judicial Notice is denied as the information contained therein is irrelevant as to whether Collins was properly served with the summons and complaint in this action. As such, Collins' objection to the Request for Judicial Notice is moot.

In an unlawful detainer action, "[w]here the defendant files a notice of motion as provided for in subdivision (a) of Section 418.10, the time for making the motion shall be not less than three days nor more than seven days after the filing of the notice." CCP 1167.4(a). As such, the original 9/4/26 hearing date violated CCP 1167.4(a). Additionally, a written opposition must be filed and served on or before the court day before the hearing and served in a manner reasonably calculated to ensure delivery no later than the close of business on the court day before the hearing. CRC 3.1327(c).

As noted above, Plaintiff filed and electronically served a written opposition to Collins' motion to quash on 6/21/26 which complies with CRC 3.1327(c). Despite Plaintiff's failure to comply with this Court's 6/12/26 order regarding serving notice of the advancement of the hearing on the motion, Collins clearly had notice of same because he was telephonically present at the 6/12/26 hearing and he filed a reply to the opposition on 6/22/26. (See 6/12/26 Minute Order). As such, the Court finds that Collins was not prejudiced by the failure to timely serve notice of the ruling advancing the hearing on the instant motion.

CCP 418.10(a) provides, in relevant part, that "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her."

Personal service requires personal delivery of the summons and complaint directly to the person to be served. See CCP 415.10.

Here, Plaintiff has filed a proof of service indicating that all of the Defendants were personally served on 4/24/26 at 12:18 pm by delivering the summons and complaint, along with other documents, to an "individual [who] appeared to be a black-haired white female contact 55-65 years of age, 5'6" tall and weighing 160-180 lbs with an accent." (See Proof of Service of Summons filed 5/27/26, Nos. 3.a., 5.a.).

Collins has submitted a declaration stating that he was not present when the alleged service occurred and he was never personally handed a summons or complaint. (See Collins Decl. ¶¶3-9; Supplemental Collins Decl.).

Without any evidentiary support, the opposition claims that "[t]he proof of service proves that a registered process server sub-served Michael Collins on May 8, 2026 by serving Jane Doe, a black-haired black female 45-55 years of age, 5'6"-5'8" and 160-180 pounds. Defendant Claudia Marie fits that description. Copies of the service documents were thereafter mailed to Defendant Michael Collins. The declaration of due diligence reflects that five

(5) prior attempts were made to serve Michael Collins to no avail. The proof of service was filed with the Court on (Ex 1).”

(See Opposition, p.3:21-25).

As noted above, the only proof of service filed with the Court regarding service of the summons of complaint is the proof of service filed on 5/27/26 which indicates personal service on all of the Defendants. There is no evidence that Collins was ever properly served with the summons and complaint via substituted service (e.g. no proof of service has been filed re substituted service, there is no declaration of diligence and no declaration of subsequent mailing). As such, Plaintiff's arguments and authority regarding the validity of substituted service on Collins are irrelevant and without merit.

The proof of service of the summons and complaint is defective on its face as it claims personal service on 9 different individuals by delivering the documents to one unidentified female.

CONCLUSION

The motion is granted.

The demurrer (filed 5/4/26 with Reservation ID: 099414708523) and motion to strike (filed 5/28/26 with Reservation ID: 213790386169) filed by Defendant Michael Collins after the instant motion to quash service of summons was filed are placed off calendar. Since Collins moved to quash the service of the summons and complaint before filing the demurrer and motion to strike, he has not consented to the jurisdiction of the Court and the Court does not have jurisdiction to rule on the matters. See CCP 418.10(e).

Dept. F47

Date: 6/26/26

Case #26CHCV01621

MOTION TO QUASH
SERVICE OF SUMMONS

Motion filed on 4/27/26.

MOVING PARTY: Defendant Gordon Leverett (special appearance)

RESPONDING PARTY: Plaintiff MU Holding Enterprises, Inc.

NOTICE: ok

RELIEF REQUESTED: An order quashing the purported service of summons and complaint on Defendant Gordon Leverett.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

On 4/22/26, Plaintiff MU Holding Enterprises, Inc. (Plaintiff) filed this unlawful detainer action against Defendants Michael Collins (Collins); Claudia Marie (Marie); Brett Mosloy (Mosloy); Gordon Leverett (Leverett); J. Erin (Erin); John Doe (John); Kim Doe (Kim); Brett Doe (Brett); and Jamie Doe (Jamie) regarding residential property located at 15023 Devonshire Street, Mission Hills, CA 91345.

On 5/7/26, Leverett, representing himself, filed and served the instant motion seeking an order quashing the purported service of summons and complaint on Leverett. The motion was originally scheduled for hearing on 9/30/26. On 6/12/26, the Court advanced the hearing to 6/26/26. (See 6/12/26 Minute Order). On 6/23/26, Plaintiff filed and served an opposition to the motion.

ANALYSIS

CCP 418.10(a) provides, in relevant part, that “[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: (1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her.”

Personal service requires personal delivery of the summons and complaint directly to the person to be served. See CCP 415.10.

Here, Plaintiff has filed a proof of service indicating that all of the Defendants were personally served on 4/24/26 at 12:18 pm by delivering the summons and complaint, along with other documents, to an "individual [who] appeared to be a black-haired white female contact 55-65 years of age, 5'6" tall and weighing 160-180 lbs with an accent." (See Proof of Service of Summons filed 5/27/26, Nos. 3.a., 5.a.).

Leverett has submitted a declaration stating that he was not present when the alleged service occurred and he was never personally handed a summons or complaint. (See Leverett Decl. ¶¶3-9).

Without any evidentiary support, the opposition claims that "[t]he proof of service proves that a registered process server sub-served Gordon Leverett on May 8, 2026 by serving Jane Doe, a black-haired black female 45-55 years of age, 5'6"-5'8" and 160-180 pounds. Defendant Claudia Marie fits that description. Copies of the service documents were thereafter mailed to Defendant Michael Collins. The declaration of due diligence reflects that five (5) prior attempts were made to serve Michael Collins to no avail. The proof of service was filed with the Court on (Ex 1)." (See Opposition, p.2:5-10).

As noted above, the only proof of service filed with the Court regarding service of the summons of complaint is the proof of service filed on 5/27/26 which indicates personal service on all of the Defendants on 4/24/26. There is no evidence that Leverett was ever properly served with the summons and complaint via substituted service (e.g. no proof of service has been filed re substituted service, there is no declaration of diligence and no declaration of subsequent mailing). As such, Plaintiff's arguments and authority regarding the validity of substituted service on Leverett are irrelevant and without merit.

The proof of service of the summons and complaint is defective on its face as it claims personal service on 9 different individuals by delivering the documents to one unidentified female.

CONCLUSION

The motion is granted.